

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
AARON ROSS,

Plaintiff,

-against-

THE CITY OF NEW YORK,
ASSISTANT DISTRICT ATTORNEY MARK POSNER,
POLICE OFFICER PAUL GALLO, AND
SERGEANT KENNETH HERRARTE,

Defendants.
-----X

Index No.:

Date Purchased:

SUMMONS

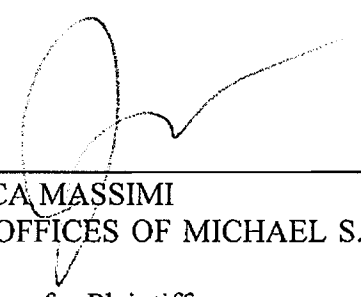
Plaintiffs designate Kings
County as the place of trial.

The basis of venue is:
Location of Incident

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 28, 2018



JESSICA MASSIMI
LAW OFFICES OF MICHAEL S. LAMONSOFF,
PLLC
Attorneys for Plaintiff
32 Old Slip, 8th Floor
New York, NY 10005

TO:

THE CITY OF NEW YORK
C/O THE NEW YORK CITY LAW DEPARTMENT
100 CHURCH STREET
NEW YORK, NY 10007

ASSISTANT DISCTRICT ATTORNEY MARK POSNER
1561 RYDER STREET
BROOKLYN, NY 11235

POLICE OFFICER PAUL GALLO
61ST PRECINCT
2575 CONEY ISLAND AVENUE
BROOKLYN, NY 11223

SERGEANT KENNETH HERRARTE
PSA 4
130 AVENUE C
NEW YORK, NY 10009

SUPREME COURT STATE OF NEW YORK
COUNTY OF KINGS

-----X
AARON ROSS,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

**JURY TRIAL
DEMANDED**

THE CITY OF NEW YORK,
ASSISTANT DISTRICT ATTORNEY MARK POSNER,
POLICE OFFICER PAUL GALLO, AND
SERGEANT KENNETH HERRARTE,

Defendants.
-----X

Plaintiff, AARON ROSS, by and through his attorneys, **THE LAW OFFICES OF
MICHAEL S. LAMONSOFF, PLLC**, as and for his Verified Complaint, respectfully alleges,
upon information and belief:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the United States of America.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.
3. This action is also brought pursuant to New York State Law for malicious prosecution and denial of fair trial.
4. Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343, and 1367.

5. This court has jurisdiction over each state court claim as well as each federal claim pursuant to concurrent jurisdiction.

NOTICE OF CLAIM

6. Plaintiff filed a Notice of Claim with the Comptroller of the City of New York within 90 days of the accrual of his claims for malicious prosecution and denial of his right to a fair trial.
7. More than 30 days have elapsed since the filing of the Notice of Claim, and adjustment or payment thereof has been neglected or refused.
8. Plaintiff, pursuant to General Municipal Law 50(h) was produced for a statutory hearing.
9. This action was commenced within one year and ninety days from the date the pendent claims herein accrued for malicious prosecution and denial of the right to a fair trial.

VENUE

10. Venue is properly laid in the Supreme Court of the State of New York, in that the events giving rise to this claim occurred in Kings County in the State of New York.

JURY DEMAND

11. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

PARTIES

12. Plaintiff, AARON ROSS, is, and has been, at all relevant times, a resident of the County of Queens, City and State of New York.
13. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

14. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK.
15. At all times hereinafter mentioned, the individually named defendant, Kings County ASSISTANT DISTRICT ATTORNEY MARK POSNER, was an individual employed by Kings County and the City of New York, in the City and State of New York. Defendant Posner is sued herein in his official and individual capacities.
16. At all times hereinafter mentioned, the individually named defendant, POLICE OFFICER POLICE OFFICER PAUL GALLO, was a duly sworn member of said department and was acting under the supervision of said department and according to his official duties. Defendant Gallo is sued herein in his official and individual capacities. At all times hereinafter mentioned, Defendant Gallo was assigned to the 61st Precinct of the NYPD.
17. At all times hereinafter mentioned, the individually named defendant, SERGEANT KENNETH HERRARTE, was a duly sworn member of said department and was acting under the supervision of said department and according to his official duties. Defendant Herrarte is sued herein in his official and individual capacities. At all times hereinafter mentioned, Defendant Herrarte was assigned to the 61st Precinct of the NYPD.
18. At all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or CITY OF NEW YORK.

19. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant, THE CITY OF NEW YORK.
20. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant, THE CITY OF NEW YORK.

FACTS

21. On March 31, 2015, at approximately 5:30 p.m., Plaintiff Aaron Ross was lawfully present in his legally-parked vehicle at or near the intersection of Nostrand Avenue and Kings Highway in the County of Kings, City and State of New York.
22. At this time and place, Defendant Posner began attacking Plaintiff by reaching through his car windows and by pounding on his car.
23. At this time, Defendants Gallo and Herrarte arrived at the location on duty and in uniform.
24. Without any legal justification or excuse, Defendants approached Plaintiff and began searching him.
25. The search revealed no evidence of any guns, drugs, or contraband.
26. Plaintiff was not engaged in any unlawful or suspicious activity.
27. Nonetheless, the Plaintiff was formally arrested, was placed in handcuffs, and was transported to the station house of a local area precinct where he was searched and detained for several hours.
28. The search yielded no evidence of any guns, drugs, or contraband

29. At no time on March 31, 2015, did Plaintiff commit any crime or violation of law.
30. At no time on March 31, 2015, did Defendants possess probable cause to arrest Plaintiff or to order Plaintiff's arrest.
31. At no time on March 31, 2015, did Defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest Plaintiff.
32. Plaintiff was held for several hours at the stationhouse before he was transported to Kings County Central Booking where he was held for several additional hours before he was arraigned on a criminal complaint containing false allegations provided by Defendants.
33. These allegations were false and Defendants knew they were false when they made them.
34. Pursuant to these false allegations, the Plaintiff was charged with two counts of assault, two counts of menacing, and one count of leaving the scene of an incident without reporting.
35. Defendants provided knowingly false and misleading information to prosecutors at the Kings County District Attorney's Office.
36. Each of the allegations were false and the Defendants knew them to be false when they were made.
37. As a result of the foregoing, Plaintiff sustained, *inter alia*, embarrassment, humiliation, physical injuries, and deprivation of his constitutional rights.
38. All of the aforementioned acts of Defendants, their agents, servants and employees, were carried out under the color of state law.
39. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to

the Constitution of the United States of America, and were therefore in violation of 42 U.S.C. Section 1983.

40. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers with all of the actual and/or apparent authority attendant thereto.
41. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.
42. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted custom, usage, practice, procedure or rule of respective municipality/authority, which is forbidden by the Constitution of the United States.

FIRST CLAIM FOR RELIEF FOR
FALSE ARREST
UNDER 42 U.S.C. § 1983

43. Plaintiff AARON ROSS repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
44. As a result of the Defendants' conduct, Plaintiff was subjected to illegal, improper and false arrest, taken into custody, and caused to be falsely imprisoned, detained, and confined without any probable cause, privilege, or consent.
45. As a result of the foregoing, Plaintiff's liberty was restricted, he was put in fear for his safety, and he was falsely arrested without probable cause

**SECOND CLAIM FOR RELIEF FOR
DENIAL OF RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983**

46. Plaintiff repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
47. At no time did Defendants have any legal basis for commencing criminal process, nor was there any reasonable basis to believe said conduct set forth herein was lawful, reasonable, or otherwise appropriate.
48. Defendants misrepresented and falsified evidence to the Kings County District Attorney.
49. Defendants did not make a complete and full statement of facts to the District Attorney.
50. Defendants withheld exculpatory evidence from the District Attorney.
51. Defendants were directly and actively involved in the initiation of criminal proceedings against Plaintiff.
52. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff.
53. Defendants acted with malice in initiating criminal proceedings against Plaintiff.
54. Defendants directly and actively involved in the continuation of criminal proceedings against Plaintiff.
55. Defendants lacked probable cause to continue criminal proceedings against Plaintiff.
56. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings against Plaintiff.
57. Notwithstanding the perjurious and fraudulent conduct of Defendants the criminal proceedings were terminated in Plaintiff's favor when his charges were dismissed.
58. By so doing, the individual Defendants, individually and collectively, subjected Plaintiff to fabrication of evidence, denial of fair trial, and denial of due process, and thereby

violated, conspired to violate, and aided and abetted in the violation of Plaintiff's rights under the Fourth and Fourteenth Amendments of the United States Constitution.

59. By reason thereof, the individual Defendants violated 42 U.S.C. §1983 and caused Plaintiff to suffer emotional and physical injuries, mental anguish, incarceration and the deprivation of liberty, and the loss of his constitutional rights.

**THIRD CLAIM FOR RELIEF FOR
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

60. Plaintiff AARON ROSS repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
61. Defendants fabricated knowingly false material evidence and forwarded said evidence to prosecutors at the Kings County District Attorney's Office.
62. As a result, Plaintiff suffered deprivation of his liberty, as he was required to make numerous court appearances to contest the false accusations against him.
63. As a result of the foregoing, Plaintiff's liberty was restricted, he was put in fear for his safety, and he was detained and falsely arrested, detained, and maliciously prosecuted without probable cause.

**FOURTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION
PURSUANT TO STATE LAW**

64. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
65. That at all times hereinafter mentioned, defendant THE CITY OF NEW YORK assumed responsibility supervision, and authority over THE NEW YORK CITY POLICE

DEPARTMENT and, its agents, servants and employees, and is liable to plaintiff for the acts complained of herein under the theories of vicarious liability and *respondeat superior*.

66. That as a direct, sole and proximate result of the malicious prosecution, plaintiff was caused to and did sustain humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, injury to personal and business reputation, inconvenience, disturbance and disruption of life, legal expenses, and loss of personal income.
67. By the actions described above, the Defendants caused plaintiff to be maliciously prosecuted without probable cause, illegally, without any proper claims, and without any right or authority to do so. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to the Plaintiff and violated his statutory and common law rights as guaranteed by the laws of the Constitution of the State of New York.
68. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, physical injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

FIFTH CLAIM FOR RELIEF
FOR MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

69. Plaintiff, repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

70. Defendants arrested, searched, and incarcerated plaintiff AARON ROSS, in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said search, arrest and incarceration would jeopardize Plaintiff's liberty, well-being, safety, and violate his constitutional rights.
71. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.
72. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.
73. Those customs, policies, patterns, and practices include, but are not limited to:
- i. requiring officers to make a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
 - ii. requiring precincts to record a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
 - iii. failing to take any measures to correct unconstitutional behavior when brought to the attention of supervisors and/or policy makers;
 - iv. failing to properly train police officers in the requirements of the United States Constitution.
74. The aforesaid customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department directly cause, *inter alia*, the following unconstitutional practices:
- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics;

- ii. arresting individuals regardless of probable cause in order to positively affect precinct-wide statistics;
 - iii. falsifying evidence and testimony to support those arrests;
 - iv. falsifying evidence and testimony to cover up police misconduct.
75. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department constitute a deliberate indifference to the safety, well-being and constitutional rights of Plaintiff, AARON ROSS.
76. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.
77. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff as alleged herein.
78. As a result of the foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department, Plaintiff was placed under arrest unlawfully.
79. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiff.
80. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiff's constitutional rights.

81. All of the foregoing acts by defendants deprived Plaintiff of federally protected constitutional rights, particularly their Fourth and Fourteenth Amendment rights to be free from unreasonable search and seizure.

**AS AND FOR A FOURTH CLAIM FOR RELIEF
FOR FALSE ARREST,
FALSE IMPRISONMENT AND
DENIAL OF FAIR TRIAL
PURSUANT TO STATE LAW**

82. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
83. That at all times hereinafter mentioned, defendant THE CITY OF NEW YORK assumed responsibility supervision, and authority over THE NEW YORK CITY POLICE DEPARTMENT and, its agents, servants and employees, and is liable to plaintiff for the acts complained of herein under the theories of vicarious liability and *respondeat superior*.
84. Plaintiff was detained and held under the imprisonment and control of the defendants under false pretenses.
85. Due to the negligence of the defendants, their servants, agents, employees, licensees, independent contractors and/or police officers while in the course and scope of their employment with THE CITY OF NEW YORK, and acting under authority of the NEW YORK CITY POLICE DEPARTMENT, falsely arrested and imprisoned the plaintiff, without warrant, authority of law or probable cause therefore.
86. That the acts and conduct on the part of the individual defendants constituting unlawful and unconstitutional conduct are: unlawfully and intentionally detaining and confining

plaintiff against his will and without his consent; unlawfully and intentionally detaining and confining plaintiff without privilege, probable cause or valid legal process; fabricating evidence against the plaintiff; unlawfully detaining and confining plaintiff through the unlawful arrest of plaintiff; unlawfully detaining and confining plaintiff through the use of force; unlawfully arresting plaintiff and placing plaintiff in handcuffs without reasonable cause therefore, and committing such other acts resulting in the unlawful arrest and imprisonment of plaintiff.

87. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.
88. That plaintiff was conscious of the confinement.
89. That as a direct, sole and proximate result of the false arrest and imprisonment, plaintiff was caused to and did sustain embarrassment, emotional and mental distress, moral and mental degradation, indignity and inconvenience, disturbance and disruption of life.
90. By the actions described above, defendants "POLICE OFFICERS" and THE CITY OF NEW YORK caused plaintiff to be falsely arrested and/or falsely imprisoned without probable cause, without reasonable suspicion, illegally, without any proper claims, and without any right or authority to do so. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws of the Constitution of the State of New York.
91. As a result of the foregoing, plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress,

great humiliation, costs and expenses, and was otherwise damaged and injured.

WHEREFORE, the Plaintiff respectfully requests judgment against each Defendant on each of the foregoing causes of action as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. §1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
February 28, 2018

Respectfully submitted,

**LAW OFFICES OF MICHAEL S.
LAMONSOFF, PLLC**
Counsel for the Plaintiff

By: JESSICA MASSIMI
32 Old Slip, 8th Floor
New York, New York 10005
(212) 962-1020

VERIFICATION

JESSICA MASSIMI, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LAW OFFICES OF MICHAEL S. LAMONSOFF, attorneys of record for Plaintiff, AARON ROSS, in the action within. I have read the annexed

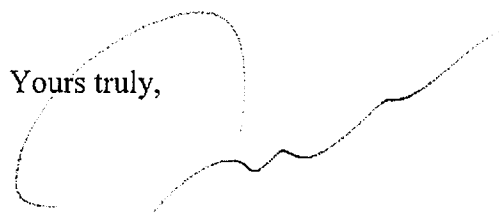
SUMMONS AND VERIFIED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff is that Plaintiff is not presently in the county wherein the attorneys for the Plaintiff maintain their offices.

Dated: New York, New York
February 28, 2018

Yours truly,



JESSICA MASSIMI, ESQ.
LAW OFFICES OF MICHAEL S.
LAMONSOFF, PLLC
Attorneys for Plaintiff
32 Old Slip, 8th Floor
New York, New York 10005
(212) 962-1020